

PALOKI — comprehensive search and written opinion

Packet for Erik M. Pelton & Associates • prepared by NexSys LLC • September 9, 2026

Everything below §1 is our own research pass (September 8, 2026), not legal analysis. It is here to save you time, not to steer you; if any of it is wrong or unhelpful, please disregard it.

§1 The engagement

Candidate	PALOKI — standard characters, one coined word, no meaning in English
Applicant	NexSys LLC (Louisiana)
Basis	§1(b), intent to use
Classes	9 and 42 — proposed identifications in Appendix A2 (please correct freely; the two exclusions at the end of each are deliberate, and §2 says why)
Scope	U.S. comprehensive search and written opinion, at the \$1,200 quoted on September 5. U.S. only; any EU question we will handle separately.
Turnaround	Standard five business days. We would like the opinion in hand by Friday, September 18 . If your queue means the standard turnaround will not get there, please take the expedite and tell me the surcharge; you do not need to wait for my confirmation unless it is materially above the “few hundred dollars” you mentioned.
After a clean opinion	File within days, as you offered; we buy the matching .com the same day.
The change of candidate	Your concern about another DOMO name matched our own read; after our own review we stepped away from the DOMO family entirely. PALOKI carries no family mark at all.

§2 The one question to read on sight, before the search begins

PALOKI contains three live Class 9/42 strings whole — **PALO**, **LOKI** and **OKI** — and I would rather you see them now than on day four. Our own pass says none of them is blocking; that is exactly the kind of conclusion I want a lawyer’s signature on, not ours.

(a) OKI — the one to price. OKI Electric Industry Co., Ltd. (Japan) holds OKI in Class 9 (Regs. 1578683, 3840953, 6542585, 4593286 — telecom switching, modems, peripherals, printers). It is the one owner in this neighborhood with a record of acting against letter-plus-OKI marks: it opposed OKIUSA (Opp. 91177751, 2007) and filed an extension of time against IOKI (Serial 77768585, 2009) — nothing since 2009. Against that: 879 live Class 9/42 marks contain “oki,” the goods are remote from home-automation software, and OKI sits at the unstressed end of our word. One fact in OKI’s favor that we measured ourselves: in an automated speech test the only systematic mishearing of PALOKI was to “OKI” (8 of 36 trials). **The ask:** is a watch notice or opposition from OKI Electric plausible, and would a §2(d) claim be sustainable given the crowding? If you think it is blocking on sight, tell me before starting the search and we will redirect the same engagement, at the same fee, to a fallback the same day.

(b) LOKI — the wording our identifications avoid. Raintank, Inc. (Grafana Labs) holds LOKI in Class 9 (Reg. 6949788, software for logs and machine-generated data) and Class 42 (Reg. 6542537, “providing on-line non-downloadable software for multi-tenant log aggregation, monitoring, and analysis”). Our Class 42 identification excludes that wording by name, and both classes exclude log aggregation and machine-generated-data analytics for enterprise IT. The record we found: 33 live Class 9 marks contain “loki”; six of nine LOKI-formative Class 9 marks we pulled registered with no office action; and **TALLOKI** (Serial 98598376 — a two-syllable prefix plus LOKI, our exact shape, filed after Grafana’s Class 9 registration issued) drew a non-final action on January 2, 2025 that says verbatim: “The trademark examining attorney has searched the USPTO database of registered and pending marks and has found no conflicting marks that would bar registration under Trademark Act Section 2(d).” One caveat we would ask you to carry: TALLOKI’s goods (appointment-scheduling software) are remote from Grafana’s, so that precedent shows the Office not treating LOKI as the dominant element of a prefix-plus-LOKI software mark — it does not show the Office clearing such a mark on goods near Grafana’s. That is why the exclusion in A2 is load-bearing rather than cosmetic. Grafana’s only TTAB appearance is as a defendant (92091183). **The ask:** does the exclusion do its job, and does our own “monitoring” language (home-automation devices and scenes) stay far enough from theirs?

(c) PALO — low, please confirm. Jedox AG holds PALO in Class 9 (Reg. 3828440 — spreadsheet and OLAP software for financial planning); David Pearson holds PALO in Class 42 (Reg. 5550984 — design services). Palo Alto Networks has 37 live marks and six TTAB proceedings, every one over CORTEX and none over the PALO string. The words sound different (PALOKI /pæl’oʊki/ against PALO /’pɑ:lɒs/), PALO sits under our unstressed first syllable, and the goods are remote.

§3 The order in which I’d value your read in the opinion

1. **OKI Electric** — §2(a): the enforcement record, the crowding, and whether a watch notice is a realistic exposure for a home-automation software mark.
2. **Grafana’s LOKI** — §2(b): the two registrations against our identifications; TALLOKI with the goods caveat; whether the exclusion holds.
3. **PALO** — §2(c), and Palo Alto Networks specifically.
4. **The two exclusions in A2** — whether they help or hurt (the log-aggregation one for LOKI; the fire/smoke/alarm one, explained in item 5).
5. **The Finnish reading.** In Finnish, *palo* means “fire” and is a productive prefix (*palovaroitin* fire alarm, *palomuri* firewall). The whole word PALOKI means nothing in Finnish. For the U.S. filing: is any translation statement or disclaimer needed for a word that merely contains a foreign fragment, and does the fire/alarm exclusion earn its place in the U.S. identification given that an EU filing may follow later?
6. **State registries and common-law use** — the axes our own pass could not reach (Appendix A5). This is where your search earns its fee: whether anyone can stop our use, not only our registration.
7. **Non-Latin transliterations** — whether your search covers katakana, hangul and Chinese-character equivalents; our pass could not.
8. **Anything else you would flag** — e.g., PAL (Bellson Electric, Reg. 6393529, Class 9/11 pool-automation controllers — the nearest live mark by goods, though it is the common word PAL), and whether standard-character filing is the right shape here.

Appendix A — our own pre-opinion pass on PALOKI (September 8, 2026; not legal analysis)

How it was run. Every count below was taken at the primary source (the USPTO search API and TSDR documents, TTABVue, WIPO's Global Brand Database, RDAP, the public indexes of the connected-home ecosystem) and each instrument was validated with a control query before its zero was trusted; every load-bearing count reproduced on a second run. Bracketed [V] in the source means "verified at the primary"; [INFERRED] means our reading. The verbatim source sentences and URLs are in A4 so you can re-fetch anything in seconds.

The headline numbers. USPTO: WM: paloki = 0 live and 0 dead; WM: *paloki* = 0. WIPO Global Brand Database: 0 across 76,603,560 records from 89 sources. Connected-home channel (Home Assistant brands, HACS, ioBroker, Z-Wave JS, Zigbee2MQTT, openHAB, Matter/CSA): 0. Apple and Google app stores: 0. Package namespaces (npm, PyPI, crates, Maven, Docker Hub, Homebrew): all free. Embedded strings, live Class 9/42: "loki" 33 (Class 9) / 40 (9 or 42); "oki" 879; "palo" 90. Enforcement: Palo Alto Networks 6 TTAB proceedings, all CORTEX; Grafana 1, as defendant; OKI Electric active 2007–2009 on OKI-formatives, dormant since. Domain: paloki.com is marketplace inventory (Atom.com, listed at \$2,495; created 2025-03-14; no operating business); .net/.org/.app/.dev free.

A1 Live conflict candidates (verbatim goods from the register)

LOKI — Raintank, Inc. **DBA Grafana Labs** (DE corp., New York NY; atty Theresa H. Wang, Stokes Lawrence) · sn 97240225 / **Reg. 6949788** · Class **9** · REGISTERED 2023-01-10; filed 2022-01-26; pub. 2022-10-25

Goods/services (verbatim): "Downloadable computer software for use in analyzing, searching, indexing, storing, organizing, managing, processing, retrieving, parsing, reporting, summarizing and relaying of information and data from logs and other machine generated data from computer systems and other software and hardwa..." (truncated at the API)

Prosecution / enforcement: No TTAB action as plaintiff; appears only as **defendant** (92091183 FARO Technologies v. Raintank, pending)

Our note: contains LOKI entirely but **at the end**, behind an unstressed prefix; **33 live cl. 9 marks contain "loki"**; **TALLOKI expressly cleared under §2(d) in cl. 9**

LOKI — Raintank, Inc. · sn 90124370 / **Reg. 6542537** · Class **42** · REGISTERED

Goods/services (verbatim): "Providing on-line non-downloadable software for multi-tenant log aggregation, monitoring, and analysis."

Prosecution / enforcement: as above

Our note: same; **this is the wording our cl. 42 identification must avoid**

OKI — OKI Electric Industry Co., Ltd. (Japan) · Regs. **1578683** · **3840953** · **6542585** · **4593286** · Class **9** · REGISTERED / RENEWED

Goods/services (verbatim): "Electronic telephone and telegraph switching units; electronic data switching units for digital communications; telephone sets; carrier transmission equipment, namely, modems, multiplexers, video codecs..."; also facsimile machines, computer peripherals, printed circuit boards

Prosecution / enforcement: **The one active enforcer:** plaintiff v. **OKIUSA** (opp. 91177751, 2007) and v. **IOKI** (ext. 77768585, 2009); 15 proceedings total; **none since 2009**

Our note: contains OKI entirely at the end; **879 live 9/42 marks contain "oki"** — a very weak string; **but this owner has a formative-enforcement record and the measured ASR collapse PALOKI→OKI (8/36) is real**

PALO — Jedox AG (Germany) · sn 79068293 / **Reg. 3828440** · Class **9** (38/42 cancelled) · \$71 ACCEPTED (live)

Goods/services (verbatim): "computer software for use as a spreadsheet and for on-line analytical processing of data in the fields of financial planning, analysis and reporting."

Prosecution / enforcement: none found

Our note: contains PALO at the **beginning**, but our /pæl'-/ ≠ their /p'a:lɒʊ/; goods remote

PALO — Pearson, David • **Reg. 5550984** • Class 42 • \$8 ACCEPTED

Goods/services (verbatim): “Architectural design; Furniture design services; Graphic design services; Landscape architectural design.”

Prosecution / enforcement: none

Our note: remote

PALO ALTO NETWORKS — Palo Alto Networks, Inc. • Regs. 4323279 (9), 4806335 (9/42), 6724559 & 4762250 (45); **37 live marks** • Class 9/42/45 • REGISTERED

Goods/services (verbatim): network security goods and services

Prosecution / enforcement: **6 TTAB proceedings, every one CORTEX v. Arm Limited. No PALO-formative enforcement.**

Our note: two words, different rhythm; no record of enforcing the PALO string

PAL — Bellson Electric Pty Ltd • **Reg. 6393529** • Class 9/11 • REGISTERED

Goods/services (verbatim): “Swimming pool programmable automation controllers; swimming pool electronic automation controllers for operating swimming pool power and lighting; motorized valve remote control systems...”

Prosecution / enforcement: none

Our note: **nearest live mark by GOODS** (property automation control), but the mark is the common word PAL

PALAKI — Harshil Ramesh Doshi (India) • IN **4626064** • Class **11** • REGISTERED 2020-08-26

Goods/services (verbatim): (India cl. 11)

Prosecution / enforcement: not tested

Our note: nearest live foreign record to our classes; a different word

Nothing above is a live PALOKI conflict. There is no PALOKI mark, live or dead, anywhere I could reach.

A2 Proposed identifications — drawn to avoid the nearest conflicts; please correct freely

Two exclusions do real work: (i) keeping cl. 42 clear of Grafana’s “multi-tenant log aggregation, monitoring, and analysis”; (ii) keeping both classes clear of fire/smoke/alarm goods, which defuses the Finnish **pa**lo absolute-grounds exposure on any EU filing **and** simultaneously clears the cl. 11 LOKI (Delta Faucet) / fire-safety neighbourhood.

International Class 9 — Downloadable and recorded computer operating software for local-first home-automation hubs; downloadable computer software for configuring, monitoring and controlling home-automation devices, sensors and scenes over local networks; downloadable computer software for creating, testing and explaining home-automation rules and automations; downloadable software development kits (SDK) for integrating third-party smart-home devices; **none of the foregoing being software for log aggregation, log analysis or machine-generated-data analytics for enterprise information-technology infrastructure; and none of the foregoing being fire alarms, smoke detectors, or software for fire detection or fire-alarm monitoring.**

International Class 42 — Software as a service (SaaS) featuring software for configuring, monitoring and controlling home-automation devices, sensors and scenes; platform as a service (PaaS) featuring computer software platforms for home automation; providing online non-downloadable software for creating and explaining home-automation rules; technical support services for home-automation software; **none of the foregoing being on-line non-downloadable software for multi-tenant log**

aggregation, monitoring or analysis of machine-generated data; and none of the foregoing relating to fire detection, fire-alarm monitoring or fire-safety services.

Filing notes. (1) Expect a routine identification-amendment office action — that is what TALLOKI and most of the cl. 9 crowd drew. (2) **Standard-character** filing is what the crowding argument supports. (3) If an EUTM follows, the Finnish exclusion belongs in the identification **from the first filing**, not added later. (4) Before filing, the two axes this lane could not screen — **non-Latin transliterations** and **EU/national registers** — should be run by a paid provider; they are the residual risk. (5) The one owner to price for a watch notice is **OKI Electric**.

A3 The DuPont walk — the three real candidates (our reading)

Factor	LOKI (Raintank/Grafana) Regs. 6949788 cl. 9 · 6542537 cl. 42	OKI (OKI Electric) Regs. 1578683/3840953/6542585/ 4593286 cl. 9	PALO (Jedox AG) Reg. 3828440 cl. 9
Marks — appearance	PALOKI contains LOKI entirely , at the END	contains OKI entirely , at the END	contains PALO entirely , at the BEGINNING
Marks — sound	shares the stressed nucleus /ˈoʊki/ [V, IPA]	shares /ˈoʊki/	PALOKI /pælˈ-/ vs PALO /p ˈɑːloʊ/ — different vowel and stress [V]
Marks — meaning	LOKI = Norse god / Marvel figure; PALOKI = coined, no meaning [V]	OKI = Japanese house mark	PALO = Spanish “stick”
Commercial impression	a single coined trisyllable; the cited mark is not the dominant element and is not separated	same	our first syllable PAL- is unstressed; PALO is not perceived as a discrete element [INFERRED]
Goods as written	cl. 9 “software for ... logs and other machine generated data”; cl. 42 “multi-tenant log aggregation, monitoring, and analysis” — overlaps our observability surface , not our home-automation core	printers, peripherals, telecom switching — remote from home-automation software	“spreadsheet and on-line analytical processing ... financial planning” — remote
Channels	developer/DevOps procurement vs consumer/prosumer home	enterprise hardware	finance departments
Purchaser sophistication	high on both sides	high	high
Strength / crowding	33 live cl. 9 marks contain “loki” ; prefix+LOKI registers routinely	879 live 9/42 contain “oki” — the string is very weak	90 live 9/42 contain “palo”
Enforcement record	none as plaintiff [V]	active 2007–2009 on OKI- formatives; dormant since [V]	none found
Our read [INFERRED]	manageable; keep the identification away from log aggregation/monitoring	the one to price — a watch notice is plausible, a sustainable §2(d) is not, given 879 co-existing marks	low

The controlling precedent on this record is TALLOKI [V]: same class, same structure (2-syllable prefix + LOKI), filed after the Grafana registration, expressly cleared under §2(d).

A4 Re-fetch list — the URL and the verbatim load-bearing sentence, for each fact above

★1 The fact that carries the verdict.

<https://tsdrsec.uspto.gov/ts/cd/casedocs/webcontent/proxy?url=/casedoc/cms/case/98598376/office-action/OfficeAction7001887.pdf> (reached via <https://tsdr.uspto.gov/documentviewer?caseId=sn98598376&docId=NFIN20250102152237>) — TALLOKI, cl. 9, issue date January 2, 2025: “Search of Office’s Database of Marks — The trademark examining attorney has searched the USPTO database of registered and pending marks and has found no conflicting marks that would bar registration under Trademark Act Section 2(d). 15 U.S.C. §1052(d); TMEP §704.02.” Registered 2026-04-28.

★2 The candidate is empty at the US register. <https://tmsearch.uspto.gov/prod-stage-v1-0-0/tmsearch> (POST {"query":{"bool":{"must":[{"query_string":{"query":"..."}]}}}) — WM:paloki AND LD:true → 0; WM:paloki* → 0; WM:*paloki* (no live filter) → 0. Canaries same session: WM:mindomo AND LD:true → 1; WM:*domo* AND (IC:009 OR IC:011 OR IC:042) AND LD:true → 67.

★3 The crowding that defeats the embedded-string kill. Same endpoint: WM:*loki* AND (IC:009 OR IC:042) AND LD:true → 40; WM:*loki* AND IC:009 AND LD:true → 33; WM:*oki* AND (IC:009 OR IC:042) AND LD:true → 879; WM:*palo* AND (IC:009 OR IC:042) AND LD:true → 90.

★4 The cited marks, verbatim goods. [.../tsdr-api-v1-0-0/tsdr-api?serialNumber=90124370](https://tsdr-api-v1-0-0/tsdr-api?serialNumber=90124370) → LOKI, Raintank, Inc., cl. 42: “Providing on-line non-downloadable software for multi-tenant log aggregation, monitoring, and analysis.” · ?serialNumber=97240225 → LOKI, “Raintank, Inc. DBA Grafana Labs”, cl. 9: “Downloadable computer software for use in analyzing, searching, indexing, storing, organizing, managing, processing, retrieving, parsing, reporting, summarizing and relaying of information and data from logs and other machine generated data from computer systems...” · OKI Reg. 1578683 (OKI ELECTRIC INDUSTRY CO., LTD., cl. 9) and Reg. 3828440 PALO (Jedox AG, cl. 9, “computer software for use as a spreadsheet and for on-line analytical processing of data in the fields of financial planning, analysis and reporting.”).

★5 Enforcement. <https://ttabvue.uspto.gov/ttabvue/v?qt=adv&procstatus=All&pnam=Palo+Alto+Networks> — “Number of results: 6”, all CORTEX (91253056, 97433149, 97461376, 90692924, 88293982) plus 88219086 with PAN as defendant. · ... &pnam=Raintank — one proceeding, **92091183**, FARO Technologies v. Raintank Inc. dba Grafana Labs, Raintank as defendant, filed 03/18/2026, pending. · ...&pnam=OKI+Electric — “Number of results: 15”, incl. **91177751** OPP 06/11/2007 Oki Electric v. Okina, Jonathan, mark OKIUSA and **77768585** EXT 12/02/2009 Oki Electric v. FTM, Inc., mark IOKI. · ...&pnam=Marvel+Characters — “Number of results: 100+”, no LOKI proceeding on page 1.

★6 The world register. <https://branddb.wipo.int/en/quicksearch> → results page states “Covering 76,603,560 records from 89 data sources”; brand-name **paloki** (Embedded) → “No results found!”; control **domo** → “Displaying 1-30 of 1,701 results”. Phonetic **paloki** → 180,088 (coarse; top neighbours PALIAKI, PALAKI IN cl. 11 Reg. 4626064).

★7 The Finnish reading.

<https://kaikki.org/dictionary/Finnish/meaning/p/pa/palo.html> — palo = “fire (event of something burning, an occurrence of fire)”; palovaroin = “fire alarm (device which warns people of a possible fire, often by detecting smoke)”; palomuuri = “firewall (fireproof barrier)” and “(computer security) firewall”. paloki/palokki → 404 (control: palo returns 12 languages in the all-languages namespace).

★8 **The spoken form.** This session's rig, reproducible: `pip install espeak-ng-loader pocketsphinx soundfile`; espeak-ng IPA for **Paloki** = /pæl'ouki/ (en-US and en-GB identical), Verdomo = /vɜ:d'oumoʊ/, Verdomu = /v'ɜ:dəm,u:/, Palooka = /p'æloukə/, Loki = /l'ouki/. Forced-choice 36-utterance scores: PALOKI 28, PAROKI 21, PALOKO 18, PALOKA 9, BALOKI 6, VERDOMO 10, VERDOMU 30.

★9 **The domain.** <https://rdap.verisign.com/com/v1/domain/paloki.com> → registrar **Atom.com Domains LLC**, created 2025-03-14, expires 2027-03-14; page at atom.com/name/Paloki: “Paloki.com — Premium Domain For Sale”, price as displayed **\$2,495**, category “Made Up”. RDAP 404 (free) for paloky/palokee/palokki/pallocki/palocki/palokie/palokey .COM and for paloki in .net .org .app .dev .casa .cloud .id .us .de .fr .nl .ca.

★10 **The channel zeros, with their controls.** https://raw.githubusercontent.com/home-assistant/brands/master/core_integrations/{fibaro,venstar}/icon.png → 200; https://raw.githubusercontent.com/home-assistant/core/master/custom_integrations/hacs/icon.png → 200; all 12 candidate slugs → 404. <https://raw.githubusercontent.com/home-assistant/core/master/hacs/default/master/{integration,plugin,theme,appdaemon,template,netdaemon}> → 3,262 / 773 / 107 / 56 / 11 / 4 elements, **no palo substring**. https://csa-iot.org/csa-iot_products/?p_keywords=palok → “No Entries Found” (substring control [?p_keywords=aqar](https://csa-iot.org/csa-iot_products/?p_keywords=aqar) → Aqara). <https://itunes.apple.com/search?term=paloki&entity=software&limit=50&country=US> → resultCount 3, none named PALOKI (control home assistant → 43, “Home Assistant · Nabu Casa, Inc” rank 1).

★11 **The Loki channel.** <https://grafana.com/oss/loki/> — “Loki is a horizontally scalable, highly available, multi-tenant log aggregation system inspired by Prometheus.”; 66,000+ active users; 25,217 GitHub stars; **no ™/® beside “Loki”**. <https://6sense.com/tech/log-management/grafana-loki-market-share> — “Grafana Loki has market share of 2.13% in log-management market”; #6; 5,511 companies.

A5 What our pass could not reach — the asks for your search

Our pass reached the federal register, the world register (WIPO GBD), the connected-home channel, both app stores, the package namespaces and the .com. It could **not** reach the following; each is an ask, in the order we would weight them.

1. **All 50 state trademark registries — not searched.** Five state portals were attempted and all five failed technically; the rest were not attempted. This is the axis that governs whether anyone can stop our *use* rather than our registration, and the one we would most like your search to cover.
 2. **Common-law and business-name use** — state corporate/DBA records (only Florida was checked, and it was clean), retail listings (Amazon, Best Buy, Home Depot, Lowe’s), and general web/social presence beyond the developer namespaces. Not screened.
 3. **Non-Latin transliterations** (katakana, hangul, Chinese characters, Cyrillic) — not run; no validated instrument was reachable. If your search vendor covers these, please include them.
 4. **National and regional registers outside the U.S.** — the EU axis rests on WIPO GBD alone. Out of scope for this U.S. engagement; noted so the opinion can say what it does and does not cover.
 5. **One prosecution document not read:** LOKIQUA (Serial 90193148) drew a non-final action whose ground we did not read at the document; the TALLOKI action and one other were read verbatim.
 6. **The Finnish reading rests on dictionary data (Wiktionary-derived), not the national language authority (Kotus).** We are confident of *palo* = fire; the productivity of the prefix is what we have not confirmed at the authority.
 7. **No watch-service exposure test** for OKI Electric — §2(a) asks you to price that judgment.
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Prepared by NexSys LLC for Erik M. Pelton & Associates, September 9, 2026. Our own research pass; not legal analysis.